

Our ref: C/21/01047

29 April 2021

Dr Richard McLean

By email only: rich@richmclean.com.au

Dear Dr McLean

Application for review of a freedom of information decision

Agency: Mercy Hospitals Victoria Ltd
Agency ref: 626

We have received your application for review of the above freedom of information decision.

We are making preliminary inquiries and may consult with you and the agency to determine if your review can be resolved informally. Please provide a contact phone number at your earliest convenience to enable consultation to occur.

Written submission

We invite you to make a written submission to provide the Information Commissioner with further information in relation to your review. If you choose to make a submission, please provide it **within 14 days** by email or post. The attached fact sheet; *The freedom of information review process*, provides guidance on what to include in a submission and other matters relating to the review process.

Time to conduct your review

We will make every effort to finalise your review as efficiently as possible. However, if we have not finalised it within 30 days of the date of your application, you may apply directly to the Victorian Civil and Administrative Tribunal (**VCAT**) for a review, rather than await a decision by the Information Commissioner. If you choose not to exercise this right, we will continue to progress your review until it is finalised. The 60 day time limit on applying to VCAT does not commence to run when the 30 day period expires, it only commences when the Information Commissioner has made a decision on your review.

We currently estimate that we will need until 29 July 2021 to conduct your review. We ask that you grant us an extension until that date.

Next steps

- If you agree please advise us by reply email, or by returning the second page of this letter by email or post within three business days. If you provide your agreement, your right to apply directly to VCAT will not come into effect until after 29 July 2021.
- If you do not agree or do not respond to this request within 30 days, OVIC will continue to work to finalise your review unless you advise us that you have applied to VCAT.

Publication of the review decision

If your review requires the Information Commissioner to make a fresh decision under section 49P of the *Freedom of Information Act 1982* (Vic) (**FOI Act**), the Information Commissioner will publish a de-identified copy of the decision made in response to your review application on the OVIC website and on the Australasian Legal Information Institute (AustLII) website.

Publication is part of the Information Commissioner's function to promote understanding and acceptance by agencies and the public of the FOI Act and its object.

Further information

If you have any questions that are not answered by our fact sheet, please contact us by phone or email, using the details appearing at the top of this letter.

Yours sincerely,

Greg Burnie

Manager, Registry and Case Support

Providing your agreement

If you agree to the Information Commissioner having until 29 July 2021 to conduct your review, please email reviews@ovic.vic.gov.au with your agreement and note reference number C/21/01047.

Alternatively you may return this page by post to:

FOI Reviews
Office of the Victorian Information Commissioner
PO Box 24274
Melbourne VIC 3001

Our ref: C/21/01047

Name: Richard McLean

I agree to the Information Commissioner having until 29 July 2021 to conduct my review.

Signature:.....

Date:...../...../20.....